

I would like to start off by saying the current AI Technologies we have are not trustworthy for America and I do not believe they align with American values. The Technologies I'm referring to are stable diffusion / midJourney these kinds of image generative "AI", Which is a misnomer because they are not intelligent nor should they be classified as AI. As I am sure you are well aware these Technologies are stealing artwork from artists taking millions of jobs from game developers, cover artists, to Hollywood all the way down to small local artists. These Technologies are also incredibly harmful to the Youth of Americans. I watched The TikTok Congress meeting where the main concern was on children's well-being, however I have yet to see any of those same concerns risen with image generative AI that has already made arrests for children pornography being generated from these image generative programs. It is such a problem on social media now that if you post a picture of your child they could easily run it through AI and create an explicit image of your child. Programs like midjourney and stable diffusion are leading in this. This tech is not only creating a lack of job opportunities by stealing our own work and data and then repackaging it to us, it's dangerous for American children. There are ethical ways this Tech could be made. We could train it on public domain and free licensing images, However this tech has scraped the internet and taken images from private places like Facebook and professional art sites like artstation. The public at large gave no consent for our data to be used this way. I do believe we should have an AI but made ethically and this can happen by opt-in only and using domain and license free art/data.

Also like to add the misnomer that thinking this technology can generate outputs of a future crime by persons is unrealistic, and it's technology simply can not do that all the terms and marketing that this can be used in that kind of National Security is completely fabricated marketing.

AI Accountability Objectives

1. What is the purpose of AI accountability mechanisms such as certifications, audits, and assessments? Responses could address the following:

The purpose would be to make sure that they are only using content that is licensed or copyright free.

a. What kinds of topics should AI accountability mechanisms cover? How should they be scoped?

Internal and external audits should be in place to make sure that the content they are using is abiding by law, that it does not contain stolen goods, like for example, Midjourney and Stable Diffusion.

b. What are assessments or internal audits most useful for? What are external assessments or audits most useful for?

Internal audience are to make sure they would be abiding by the laws set in place, external assessments would be to **enforce** that they are following those laws

c. An audit or assessment may be used to verify a claim, verify compliance with legal standards, or assure compliance with non-binding trustworthy AI goals. Do these differences impact how audits or assessments are structured, credentialed, or communicated?

I believe so. I think there should be trained trustworthy individuals that enforce and partake in these audits I think learning the technology is first and foremost, and also having a deep understanding of copyright law is imperative. Many people have commented in Congress on this technology without fully understanding the capabilities or what this technology is currently doing, and how it is getting its content. Currently it's content has been scraped from the web without any regard to copyright or personal information.

d. Should AI audits or assessments be folded into other accountability mechanisms that focus on such goals as human rights, privacy protection, security, and diversity, equity, inclusion, and access? Are there benchmarks for these other accountability mechanisms that should inform AI accountability measures?

Yes absolutely human rights is a right to a fair wage, fair market and trained skill set. Currently many people are laying off artists as programs like midjourney are stealing from those very artists to generate images. Many artists are employed in Hollywood such as Film Production or video game production or marketing campaigns. This is affecting thousands to millions of artists with job security and an unfair market and forcing them to lower their wages as well. This is at its core a human rights issue. Absolutely there should be privacy protection as we have already found that in a lot of these datasets there are private medical records containing personal information from facebook images and photos of their children, to images from hospitals. Nobody wants their child photographs or even their own face contained in these datasets which image generative AI is utilizing.

e. Can AI accountability practices have meaningful impact in the absence of legal standards and enforceable risk thresholds? What is the role for courts, legislatures, and rulemaking bodies?

The role should be to protect the hard work, integrity, and personal dignity from being impacted by these exploitative AI gen programs which illegally collect, reorganize and sell back those things to the public.

2. Is the value of certifications, audits, and assessments mostly to promote trust for external stakeholders or is it to change internal processes? How might the answer influence policy design?

It could be however I feel the most use of these audits is to ensure a fair market.

3. AI accountability measures have been proposed in connection with many different goals, including those listed below. To what extent are there tradeoffs among these goals? To what extent can these inquiries be conducted by a single team or instrument?

a. The AI system does not substantially contribute to harmful discrimination against people.

AI absolutely does contribute to discrimination of all people. It has already been found that POC and black people have been generated to look more white with more white facial features in the image generation process. It has been used to deep fake pornography of several women. There have already been arrests done for people creating explicit content that contain children generated from children that it stole images of. Many celebrities are now falling victim to the Deep faking capabilities in AI. We have already seen apps that are explicitly promoting how you can make your own pornography of Emma Watson in their AI app. If you ask it to generate a woman it will come out looking more beautiful than a Victoria's Secret model. This is the Baseline for a woman's image. Men come out looking incredibly fit, often perpetuating unrealistic body standards. Men have to be incredibly fit and for women to have to be incredibly slim.

<https://www.dailymail.co.uk/video/news/video-2878017/Video-Spanish-police-arrest-man-making-AI-child-pornography.html>

So yes I believe that regulations to anything harmful to people's privacy and dignity should absolutely be taken into consideration.

b. The AI system does not substantially contribute to harmful misinformation, disinformation, and other forms of distortion and content-related harms.

The AI we're seeing today is already being used as a spam tool to spread multiple disinformation, misinformation and just spam-esque content on multiple platforms, crowding them and making it impossible to distinguish between real and fake news.

c. The AI system protects privacy.

100% in the future the systems should, currently it is not.

d. The AI system is legal, safe, and effective.

100% yes the systems should be rebuilt from ground up to ensure that they are legal, safe and effective. Currently none of the AI that is mainstream have been built this way: open-ai and

midjourney, stable diffusion, as I have previously stated all contain illegally collected unsafe content.

The governments should enforce to protect their people and their right to a fair living wage and a job.

e. There has been adequate transparency and explanation to affected people about the uses, capabilities, and limitations of the AI system.

No there has not been adequate transparency in fact I would say the exact opposite for the marketing of these AI technologies has taken place. I have worked in tech and I have a degree in computer science related Technologies. This tech is being promoted as intelligent itself. These AI tech are a misnomer, this is nothing more than a program doing what it is programmed to do, there is no intelligence behind it. There has been no mention of the mass job loss and loss of opportunity is in the market for several people being affected by the same tech that stealing their data. There has been no transparency of how they gathered their data. You have to know how to properly research Tech to find out what is even their data set Laion. They are using a dataset called Laion that scraped the web taking personal data, photography, artwork, images of real people, celebrities, etc.. without compensating any person or photographer or artist.

f. There are adequate human alternatives, consideration, and fallbacks in place throughout the AI system lifecycle.

There are zero considerations or fallbacks in place for any of the people that it is stealing from and putting at a job loss. Most book cover designers in this day have considered or have switched to AI putting thousands and thousands of artists out of a job. But not only this it has also saturated social media with false news, spam like content describing how quickly these can generate imagery and text. It is impossible already within a few months to browse any website, Google search, or social media without stumbling upon AI generated content.

g. There has been adequate consultation with, and there are adequate means of contestation and redress for, individuals affected by AI system outputs.

No artist that is being affected has been consulted or brought into the conversation of AI regulation. The ones that are most affected by this Tech are the ones that should first and foremost be brought into the conversations. Artists are currently fighting to even have the smallest say in the larger conversation on regulation. Artists from across the board should have a say in this Tech.

h. There is adequate management within the entity deploying the AI system such that there are clear lines of responsibility and appropriate skillsets.

4. Can AI accountability mechanisms effectively deal with systemic and/or collective risks of harm, for example, with respect to worker and workplace health and safety, the health and safety of marginalized communities, the democratic process, human autonomy, or emergent risks?

Absolutely it can but it needs to start from where the data comes from and this is the large part of correctly and ethically making AI. We need to make a system that is opt-in only. If we do not allow this then it would be fair game for anything that is posted online. This would mean if Madonna ever released a new album this could be used by any person in any way they see fit since it was posted online. Since why would music be treated differently than art?

5. Given the likely integration of generative AI tools such as large language models (e.g., ChatGPT) or other general-purpose AI or foundational models into downstream products, how can AI accountability mechanisms inform people about how such tools are operating and/or whether the tools comply with standards for trustworthy AI? ^[80]

Internal and external audits

6. The application of accountability measures (whether voluntary or regulatory) is more straightforward for some trustworthy AI goals than for others. With respect to which trustworthy AI goals, are there existing requirements or standards? Are there any trustworthy AI goals that are not amenable to requirements or standards? How should accountability policies, whether governmental or non-governmental, treat these differences?

I believe trustworthy goals are to have opt-in, licensed, domain free, or paid for content that they are using their training for. I don't believe it should be different for any requirement I think that if it's to be trustworthy then it needs to abide by those requirements. I do not think theft in any manner should be tolerated with the creation of these new technologies. I believe that is a very bad look for America to promote such practices.

7. Are there ways in which accountability mechanisms are unlikely to further, and might even frustrate, the development of trustworthy AI? Are there accountability mechanisms that unduly impact AI innovation and the competitiveness of U.S. developers?

I do not believe that creating boundaries for which AI must abide by will impact the development of the tech. This will not inhibit these technologies as this is not true artificial intelligence, It is not the goal to frustrate or inhibit the development of AI but to develop them ethically from the start. Already other governments have acted faster than America, inhibiting the theft and use of personal information and images in these tools. This Tech was built on the backs of free labor and exploitation. Many of these started off as non-profits, and to this day the Laion the company behind datasets most GenAI use, maintain that they are nonprofit. However we are allowing the

rapid growth and completely for-profit on something which started off as a research project. By any other means this would immediately be illegal, it's almost devastating how long this has been able to go without proper see-through or regulations by somebody not working for or directly benefiting from the company.

8. What are the best definitions of and relationships between AI accountability, assurance, assessments, audits, and other relevant terms?

AI accountability: would be abiding by any laws and audits that come into play.

AI insurance: would be statements that all of their content is licensed domain free and they should abide by inspection.

AI assessments: should happen annually or possibly every other year.

AI audits: should be performed by people that know the technology well, understand how it's made, how it's working and what to look for and how to go through a dataset. The key to a proper audit is somebody that understands tech in a very intimate manner, such as a developer.

Existing Resources and Models

9. What AI accountability mechanisms are currently being used? Are the accountability frameworks of certain sectors, industries, or market participants especially mature as compared to others? Which industry, civil society, or governmental accountability instruments, guidelines, or policies are most appropriate for implementation and operationalization at scale in the United States? Who are the people currently doing AI accountability work?

The only accountability I have seen thus far is from outside countries, Some examples are Italy and Japan. I have seen no accountability in America.

10. What are the best definitions of terms frequently used in accountability policies, such as fair, safe, effective, transparent, and trustworthy? Where can terms have the same meanings across sectors and jurisdictions? Where do terms necessarily have different meanings depending on the jurisdiction, sector, or use case?

I agree that fair safe and effective is good

11. What lessons can be learned from accountability processes and policies in cybersecurity, privacy, finance, or other areas? ^[81]

The lesson to be learned here is that runaway technology such as AI companies that became billionaires overnight by stealing data is not good for the economy, impacts vast amounts of people in many fields from across the board, creates an unfair competition, and a job loss in the

thousands. I think in the future America should act faster by regulating this technology according to those most affected by the tech or at least have them part in the conversation. Our personal data, artwork, voices should not be for the public's consumption to use in whichever manner they see fit. These are copyrighted and protected identities by law and we should abide by that. If we allow this Tech to continue to steal data from people online then we will see a massive economic crash like we have never seen in the workforce before.

12. What aspects of the United States and global financial assurance systems provide useful and achievable models for AI accountability?

Nothing currently but I believe opt-in is the only way to go to make these ethical

13. What aspects of human rights and/or industry Environmental, Social, and Governance (ESG) assurance systems can and should be adopted for AI accountability?

Several Workforce and fair labor laws can be used, along with copyright law, along with the right to privacy online. Currently this technology can deep fake even the simplest of political campaigns with politicians likenesses and voices.

14. Which non-U.S. or U.S. (federal, state, or local) laws and regulations already requiring an AI audit, assessment, or other accountability mechanism are most useful and why? Which are least useful and why?

None I believe exists that are exclusively for AI audit law

Accountability Subjects

15. The AI value or supply chain is complex, often involving open source and proprietary products and downstream applications that are quite different from what AI system developers may initially have contemplated. Moreover, training data for AI systems may be acquired from multiple sources, including from the customer using the technology. Problems in AI systems may arise downstream at the deployment or customization stage or upstream during model development and data training.

If everything is being used ethically and being licensed properly I see no reason why they could be closed source as long as they are open for audits just as a financial institution is subject to financial audits. The data should not be scraped from the web as this cannot be maintained or monitored what is collected or what is copyrighted. Scraping from a particular website that maintains all of their images or data is copyright free would be okay. But again the systems need to be opt in from the start.

a. Where in the value chain should accountability efforts focus?

The accountability should focus to make sure that this isn't stolen goods scraped from the web. Just because it is online does not mean that it is open source for everyone to use and repackage for selling purposes.

b. How can accountability efforts at different points in the value chain best be coordinated and communicated?

Collection and training are when these conversations should be had

c. How should vendors work with customers to perform AI audits and/or assessments? What is the role of audits or assessments in the commercial and/or public procurement process? Are there specific practices that would facilitate credible audits (e.g., liability waivers)?

The audits should be able to see the images trained, How the training was done, And be able to backlog into the training sites to make sure that the datasets and the databases and scraping are all consistent.

d. Since the effects and performance of an AI system will depend on the context in which it is deployed, how can accountability measures accommodate unknowns about ultimate downstream implementation?

I would just make sure that it doesn't create massive job loss On the backs of the same people that made this Tech possible

16. The lifecycle of any given AI system or component also presents distinct junctures for assessment, audit, and other measures. For example, in the case of bias, it has been shown that “[b]ias is prevalent in the assumptions about which data should be used, what AI models should be developed, where the AI system should be placed—or if AI is required at all.”^[82] How should AI accountability mechanisms consider the AI lifecycle? Responses could address the following:

Of course the AI would have to be updated with current cultural and existing biases as time and culture grows

a. Should AI accountability mechanisms focus narrowly on the technical characteristics of a defined model and relevant data? Or should they feature other aspects of the socio-technical system, including the system in which the AI is embedded? ^[83] When is the narrower scope better and when is the broader better? How can the scope and limitations of the accountability mechanism be effectively communicated to outside stakeholders?

As of now I don't think the stakeholders should be the first and foremost thought about as the current Technologies are not in the right space or legal areas to even consider stakeholders.

But in the future depending on the technology and how it's used should be defined by the scope of which it will be used, and this could be broad or it could be narrow definition, it depends on how the technology will be used and what its purpose will be. I believe it will be up to the companies themselves how they want to communicate that to their stakeholders.

b. How should AI audits or assessments be timed? At what stage of design, development, and deployment should they take place to provide meaningful accountability?

The very first step should have an internal audit to make sure that they're abiding by any privacy or copyright law.

c. How often should audits or assessments be conducted, and what are the factors that should inform this decision? How can entities operationalize the notion of continuous auditing and communicate the results?

Internally it should be an ongoing matter as to when they're updating. An externally made audit should be annually to every few years depending on what kind of AI technology is being used the same kind of risks management we hold financial institutions to.

d. What specific language should be incorporated into governmental or non-governmental policies to secure the appropriate timing of audits or assessments?

I think that we need to stop using the term AI as artificial intelligence, and move to ML or MT for machine learning or machine training which is more accurate. We should use the terms of scraping audits, database audits, and dataset audits.

17. How should AI accountability measures be scoped (whether voluntary or mandatory) depending on the risk of the technology and/or of the deployment context? If so, how should risk be calculated and by whom?

AI audits should not be voluntary, they should by law be mandatory, no other ethical way to hold companies and business practices accountable if this is not mandatory by government regulation. Should be scoped to see if they contain personal information or copyrighted materials that were not explicitly given permission to be used in the program.

18. Should AI systems be released with quality assurance certifications, especially if they are higher risk?

If an AI program is made for deep faking or pornography purposes then yes these should come with certifications that say you cannot train on a person that did not explicitly give their consent or make sure that they do not contain any images of people that did not explicitly give consent to be part of these Technologies. Already several AI companies that focus on creating pornography use people without their consent, these need to be monitored.

19. As governments at all levels increase their use of AI systems, what should the public expect in terms of audits and assessments of AI systems deployed as part of public programs? Should the accountability practices for AI systems deployed in the public sector differ from those used for private sector AI? How can government procurement practices help create a productive AI accountability ecosystem?

I think the government could make use of protection AI and Military AI. These types of AI technologies I believe could remain private and under government control. Nothing wrong with strategizing country protection. The only regulations in public audits and mandatory audits (I should hope happen) are for the AIs that affect the mass of job loss and unfair market competition by stealing from the very people they are putting out of work.

Accountability Inputs and Transparency

20. What sorts of records (e.g., logs, versions, model selection, data selection) and other documentation should developers and deployers of AI systems keep in order to support AI accountability? ^[84] How long should this documentation be retained? Are there design principles (including technical design) for AI systems that would foster accountability-by-design?

The logs should remain indefinitely as a dataset typically is trained on that data to replicate it anyway so I see no need to ever discard the original scraped content. Would not ask a financial institution to discard all their financial records after a year, so I see no difference in doing that with AI Technologies. I think that they should keep all of the data to be audited from the start. After the data is audited then they should proceed to the next checkpoint: AI training. I believe this is the only way to truthfully and ethically proceed with AI Technologies.

21. What are the obstacles to the flow of information necessary for AI accountability either within an organization or to outside examiners? What policies might ease researcher and other third-party access to inputs necessary to conduct AI audits or assessments?

Before the initial training starts the auditor should have access to what the AI will be trained on. This is where the audit should start and if everything checks out they should be given a license to continue with the training and that is how their AI should be developed. This is how AI should be built. With external audits, and then license granted. Everything should abide by copyright law, and privacy laws.

22. How should the accountability process address data quality and data voids of different kinds? For example, in the context of automated employment decision tools, there may be no historical data available for assessing the performance of a newly deployed, custom-built tool. For a tool deployed by other firms, there may be data a vendor has access to, but the audited firm itself lacks that information. In some cases, the vendor itself may have intentionally limited its own data collection and access for

privacy and security purposes. How should AI accountability requirements or practices deal with these data issues? What should be the roles of government, civil society, and academia in providing useful data sets (synthetic or otherwise) to fill gaps and create equitable access to data?

Depending on the kind of AI, these should have different regulations, such as military security, in which case should have much more access and more privacy than that of say chatgpt or midjourney. Foremost it should remain a tool and not a replacement as we have already seen by the mass of job loss that tools such as chatgpt and midjourney have caused. Companies laid off thousands upon thousands of journalists, news article reporters, and artists from all across different fields. I, myself have personally lost a client to Midjourney. Collection should always be met with an ethical manner and consenting participants. I do not feel that there will ever be a lack or void of data areas because content can always be licensed or it can always be created for the training purposes.

23. How should AI accountability “products” (e.g., audit results) be communicated to different stakeholders? Should there be standardized reporting within a sector and/or across sectors? How should the translational work of communicating AI accountability results to affected people and communities be done and supported?

There should be a report and check boxes or comments that are sent out via the Audits and how they are passed, and what they need to change or update to continue practicing and developing their AI.

Barriers to Effective Accountability

24. What are the most significant barriers to effective AI accountability in the private sector, including barriers to independent AI audits, whether cooperative or adversarial? What are the best strategies and interventions to overcome these barriers?

As I have said the best way is for opt-in only so the data to be collected should be domain free, licensed, or people voluntarily giving up this information. If it is protected by any privacy or copyright laws it should not be included unless explicit permission was given. I don't see any barriers that could come up as long as the ones conducting the audit know the technology and were able to gain access to what the AI was initially trained on. As my previous statement I believe that there should be licenses granted for the data that is to be trained on.

25. Is the lack of a general federal data protection or privacy law a barrier to effective AI accountability?

There should be data protection and several privacy laws guaranteed to every single United States citizen that is online. Americans should have a right to privacy whether it be in their homes or their personal use of online means.

26. Is the lack of a federal law focused on AI systems a barrier to effective AI accountability?

Now I don't believe enough people on the federal level even understand the technology as I believe the marketing around this has painted a picture of what this technology is, when it is simply not artificial intelligence nor is this a great tool as is for the people. The main goal of it is to replace a labor force within America.

27. What is the role of intellectual property rights, terms of service, contractual obligations, or other legal entitlements in fostering or impeding a robust AI accountability ecosystem? For example, do nondisclosure agreements or trade secret protections impede the assessment or audit of AI systems and processes? If so, what legal or policy developments are needed to ensure an effective accountability framework?

Currently should not be given any kind of copyright, unless it is a proprietary software that is trained and unsellable such as American defense. Things that have come out of image generative software should not be given Copyright as many of the outputs were trained on copyrighted materials or people's likenesses that were unconsenting. Several ways to create a robust ecosystem and an AI on domain free or public ready information. In an audit there should be no trade secrets or any protections that are hidden from an audit. Would you allow a bank to hide their financial information during a financial audit? No, you would not. There should be no exception for technologies using mass amounts of data with many many users. The accountability framework should start at the beginning before the AI is even released to the public. As we have seen this run-away tech not only destroy people's livelihoods but their personal lives as well with deep faking them in p*****.

28. What do AI audits and assessments cost? Which entities should be expected to bear these costs? What are the possible consequences of AI accountability requirements that might impose significant costs on regulated entities? Are there ways to reduce these costs? What are the best ways to consider costs in relation to benefits?

They should be subject to the same rules and regulations that a financial institution is subject to when they have to go through a financial audit. Structures should be set up in a very similar manner. Business should not be considered for any kind of reduction of cost when people's livelihoods by the millions could be ruined by this technology. If a small entity is looking for an audit, then yes there should be private entities that charge at a lower percentage, and these private entities should be licensed auditors for this technology.

29. How does the scarcity of measurable standards or benchmarks impact the uptake of audits and assessments?

AI Accountability Policies

30. What role should government policy have, if any, in the AI accountability ecosystem? For example: a. Should AI accountability policies and/or regulation be sectoral or horizontal, or some combination of the two?

The role government should play in AI accountability is by enforcing the laws of internal and external audits. We think it should be sectoral depending on the AI regulations; it should be different for chat AI versus image generation AI. The kind of accountability should be based on what kind of data is going in and what is being trained on.

b. Should AI accountability regulation, if any, focus on inputs to audits or assessments (e.g., documentation, data management, testing and validation), on increasing access to AI systems for auditors and researchers, on mandating accountability measures, and/or on some other aspect of the accountability ecosystem?

Is 100% it should focus on the inputs. This is the main problem we have with existing AI's is that the inputs we're not audited or regulated when they were trained on.

c. If a federal law focused on AI systems is desirable, which provisions would be particularly important to include? Which agency or agencies should be responsible for enforcing such a law, and what resources would they need to be successful?

To have fair representation of people, nondiscriminatory, and accountable to marginalized groups. It should only be with consent that people have their likenesses in the datasets and it should be with consent that artwork and photography are included in the datasets. Goes along with any other kind of data they may collect e.g. if there is code on GitHub but is for non-commercial use then there should be a clause that they cannot train on anything that is non-commercially public data.

This might require a new sector to do these audits within the government or another regulatory force that has understandings of the wants and the needs of the people being affected by this Tech and how the technology works and functions itself.

d. What accountability practices should government (at any level) itself mandate for the AI systems the government uses?

31. What specific activities should government fund to advance a strong AI accountability ecosystem?

I only believe funding should go towards creating an ethical and reasonable AI that is not harming average American citizens as it is doing now.

32. What kinds of incentives should government explore to promote the use of AI accountability measures?

Accountability or ethical AI should be incentivized further I think it should be mandated.

33. How can government work with the private sector to incentivize the best documentation practices?

By having open source data sets of which it was trained on and by having audits on the databases and scraping before the training even starts. Unless this is for proprietary national security software measures e.g military use (not facial recognitions., I do not see why general public AI should be privatized).

34. Is it important that there be uniformity of AI accountability requirements and/or practices across the United States? Across global jurisdictions? If so, is it important only within a sector or across sectors? What is the best way to achieve it? Alternatively, is harmonization or interoperability sufficient and what is the best way to achieve that?

Some AI uniformity for accountability should be taken into consideration. I do think that ultimately it will depend on the kind of AI technology and what its purpose is.

Globally we should have standardized AI laws, and I do believe that other nations often follow suit of what America's rulings are, so I think it is very important for America to take a very strong stance forward on how the regulations of AI technologies happen and abide by privacy and copyright laws. If we do not create strong stances than America and all of its IP, artwork, Hollywood Productions could be fair game and free for other countries exploitations.

Many AI technologies have already been banned in some countries like China whom are scared that this technology can be used for government interference and false marketing political campaigns. We have already seen in America a lot of these image generations and voice AI have created a lot of false narratives and many political disasters that haven't happened creating a huge wave of false news.